

		Because the petition seeks, in part, to remove the trustee (ROA 2 at 3:25-4:20) and the trustee holds title to a trust's real property, the petition asserts a real property claim. "The trustee of a trust holds title to real property. Unlike a corporation, a trust is not a legal entity. Rather, a trust is a fiduciary <i>relationship</i> with respect to property. When property is held in trust, there is always a divided ownership of property, generally with the trustee holding legal title and the beneficiary holding equitable title. Trusts do not own property; trustees do." (<i>Newell v. Superior Court</i> (2024) 107 Cal.App.5th 728, 736–737.) If Petitioners are successful on their claim, a new trustee would be designated and that new trustee would then hold title to the Property in his or her name as successor trustee. (<i>Id.</i> at p. 737.) <u>Probable validity of the claim.</u> To overcome the motion to expunge, Petitioners must establish "it is more likely than not [she] will obtain a judgment" on her real property claim. (Code of Civ. Proc., § 405.3.) Petitioner's showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.) The briefs filed by both parties focus almost entirely on the issue of whether there was a real property claim. Neither party presents evidence or argument regarding the probable validity of Petitioners' claims. Accordingly, the court requests supplemental briefing on that issue. Petitioners may file and serve supplemental briefing on the issue of probable validity no later than June 10, 2026. Respondent may file and serve responsive supplemental briefing on the issue probable validity no later than June 24, 2026. Neither party's briefing may exceed seven pages, not including declarations and exhibits. The hearing on the motion to expunge is CONTINUED to July 1, 2026 at 9:00 AM in Department CM08. The court directs the clerk to give notice.
4	Nguyen – Elder Abuse; 30-2025-01501681	MOTION FOR JUDGMENT
5	Thompson – Probate; 30-2024-01405460	MOTION FOR COURT ORDER TO ACCESS DECEDENT'S DIGITAL ASSETS AND DEVICE